

20STCV46671 20STCV46671

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 20STCV46671 Hearing Date: August 6, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Annette Turner

, et al.;

Plaintiffs,

vs.

AIDS Healthcare Foundation

, et al.,

Defendants.

Case No.:

20STCV46671

Hearing Date:

August 6, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
to Tax Costs

MOVING PARTY: Plaintiff Tammy Davis

RESPONDING

PARTY: Defendant AIDS Healthcare Foundation

Motion to Tax
Costs

The court considered the moving,
opposition, and reply papers filed in connection with this motion. The court,
in its discretion, refuses to consider the Supplemental Declaration of Annette
Harings in support of the reply, or the objections thereto, because new
evidence is not permitted on reply. (Hay v. Mahaffey (2013) 218
Cal.App.4th 1522, 1537-38.)

EVIDENTIARY
OBJECTIONS

The court
declines to rule on the evidentiary objections to the Declaration of Annette
Harings in support of the motion because the items subject to those objections
are not material to the court's ruling.

DISCUSSION

Plaintiff Tammy
Davis ("Plaintiff") moves to strike or tax the memorandum of costs filed by
defendant AIDS Healthcare Foundation ("Defendant").

"A 'verified memorandum of costs is prima facie evidence of the propriety' of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 [internal citation omitted].)

First, the court denies Plaintiff's request to strike the memorandum of costs in its entirety, because Defendant, not Plaintiff, is the prevailing party in this action.

A prevailing party includes "a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc., § 1032, subd. (a)(4).) In its Statement of Decision on Phase 1 of Trial, the court found that Plaintiff's cause of action alleged in the Fourth Amended Complaint against Defendant are barred by Defendant's 19th affirmative defense of release of claims, and Defendant is entitled to have judgment entered for Defendant and against Plaintiff in this action. (Statement of Decision on Phase 1 of Trial, filed February 26, 2026, pp. 18:28-19:5.) Judgment was therefore entered for Defendant and against Plaintiff in this action. (Judgment, filed February 26, 2026, p. 2:1-2.) The fact that Plaintiff received money in a settlement in a different case does not make her the prevailing party in this action. By the plain language of section 1032, Defendant is the prevailing party in this action.

Second, the court finds that neither of Defendant's Offers to Compromise pursuant to Code of Civil Procedure section 998 were valid.

"If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award...the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant." (Code Civ. Proc., § 998, subd. (c)(1).) An offer to compromise under this statute "must be sufficiently specific to allow the recipient to evaluate the worth of the offer and make a reasoned decision whether to accept the offer." (Covert v. FCA USA, LLC (2022))

Defendant

served two Offers to Compromise in this action on Plaintiff. The first, dated August 10, 2022, offered to compromise this action for \$20,000. (Harings Decl. Ex. E.) However, the August 10, 2022 offer purports to require, as part of its terms, that Davis “dismiss with prejudice all of Turner’s causes of action against AHF in this action” (Harings Decl. Ex. E. p. 2:1 [emphasis added].) Defendant argues that this reference to Turner is a typographical error, but that argument itself concedes that the August 10, 2022 offer is ambiguous. The court does not find the August 10, 2022 offer to be sufficiently specific to allow Plaintiff to evaluate its worth and make a reasoned decision whether or not to accept it.

Defendant’s

second Offer to Compromise was dated January 8, 2025, and offered to compromise this action for \$17,500. (Harings Decl. Ex. G.) The face of the offer requires “entry of a Request for Dismissal with prejudice of all claims of Plaintiff against AHF” and the execution of a Release of Claims. (Harings Decl. Ex. G. p. 1:24-26 [emphasis added].) The Release of Claims (attached to the January 8, 2025 offer) purports to release AHF from “any and all claims arising out of the subject of the Action,” but also waives “any and all claims related to the subject of the Action, which exist as of this date, but of which [Plaintiff] is unaware, and which, if known, would materially affect her decision to enter into this settlement” (Harings Decl. Ex. G. Ex. A.) Although this offer is not ambiguous as to the parties whose claims would be affected, it is ambiguous as to the scope of the released claims. It is undisputed that the parties were aware of a pending class action at the time of this offer, but the broad language used in the offer and release calls into question whether this offer would also settle and release Plaintiff’s claims in the class action. Moreover, the Release of Claims does not use identical standards for releasing known claims (“arising out of the subject of the action”) as opposed to unknown claims (“related to the subject of the action”). Nor does the Release of Claims define the “subject of the Action.” Defendant’s appellate authorities finding similar language sufficient are distinguishable and unpersuasive, because neither case confronted the circumstance here where there is a separate pending action that might be affected by the settlement. (See *Auburn Woods I Homeowners Assn. v. State Farm Gen. Ins. Co.* (2020) 56 Cal.App.5th 717, 725-26 [finding similar language sufficiently specific]; *Fassberg Constr. Co. v. Hous. Auth. of City of*

Los Angeles

(2007) 152 Cal.App.4th 720, 767 [same].) The court does not find the January 8, 2025 offer to be sufficiently specific to allow Plaintiff to evaluate its worth and make a reasoned decision whether or not to accept it.

Third,

the court grants Plaintiff's motion to tax costs as to the following items: (1) \$60 under Item 1(dd) for a Motion re: Request for Judicial Notice, Exhibit List; (2) \$1,445.50 under Item 4(e)(o) for a deposition of Angela Earvin; (3) \$848.75 under Item 4(e)(v) for a deposition of R.C. Miles; (4) \$1,427.25 under Item 4(e)(w) for a deposition of Angela Earvin; (5) \$6,541.29 under Item 15 for "Westlaw Charges"; (6) \$7,472.79 under Item 15 for "Courtesy copies of court filings hand-delivered to courtroom"; and (7) \$8,775 under Item 15 for "Executive Presentations." The court finds that these items were not reasonably necessary to the conduct of the litigation and were not reasonable in amount. (Code Civ. Proc. § 1033.5, subd. (c)(1).)

Fourth,

the court grants Plaintiff's motion to tax costs as to (8) \$44.25 under Item 15 for "FedEx" and (9) \$217.00 under Item 15 for "Investigation" because these costs appear on their face not to be allowable expenses. (Code Civ. Proc., § 1033.5, subd. (b)(2)-(4).)

Fifth,

the court grants Plaintiff's motion to tax costs as to the entirety of Item 8b for Expert Witness fees, totaling \$65,139.00, because Defendant did not serve a valid offer to compromise under Code of Civil Procedure section 998, for the reasons discussed above.

Sixth,

the court denies Plaintiff's request for sanctions.

ORDER

The court GRANTS

IN PART plaintiff Tammy Davis's motion to strike or tax defendant AIDS Healthcare Foundation's Memorandum of Costs as follows:

The court orders

that the following costs are taxed from defendant AIDS Healthcare Foundation's Memorandum of Costs: \$60 in filing fees (Item 1), \$3,721.50 in deposition costs (Item 4); \$65,139.00 in expert witness fees (Item 8b); \$23,050.33 in "Other costs" (Item 15.)

The court orders
that defendant AIDS Healthcare Foundation shall recover from plaintiff Tammy Davis costs in the amount of \$120,637.57.

The court DENIES
all other relief requested in plaintiff Tammy Davis's motion to strike or tax defendant AIDS Healthcare Foundation's Memorandum of Costs.

The court orders defendant
AIDS Healthcare Foundation to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 6, 2026

Robert B. Broadbelt III

Judge of the Superior Court